



POLICE DEPARTMENT

November 24, 2025

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In the Matter of the Charges and Specifications :
- against - :
Police Officer Lenita Harrison :
Tax Registry No. 932776 :
Patrol Borough Brooklyn North :
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Case No.
C-031586

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Emily Collins, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent:

Michael Martinez, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Lenita Harrison, while assigned to Patrol Borough Brooklyn North, on or about August 1, 2023, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Harrison engaged in a physical altercation with an individual known to the Department. (*As amended*)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED
CONDUCT

2. Said Police Officer Lenita Harrison, while assigned to Patrol Borough Brooklyn North, on or about August 1, 2023, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Harrison failed to safeguard her Department issued firearm.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED
CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 28, 2025. Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Michael Seiger and Sergeant Victor Torres as witnesses and entered the Internal Affairs Bureau ("IAB") interviews of RH [REDACTED] and TP [REDACTED] into evidence. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of Specification 1 and Guilty of Specification 2. I recommend that Respondent forfeit twenty (20) suspension days previously served on pre-trial suspension, and that the additional ten (10) suspension days served be restored to her.¹

¹ Respondent was suspended in August 2023 for thirty days in connection with this incident. The Disciplinary Matrix sets forth that, "If a member of the service was immediately suspended from duty during the pendency of an investigation, the forfeiture of suspension days, imposed prior to the disposition of the case, may be applied as part of the final disciplinary penalty." (Matrix at p.15)

ANALYSIS

This case arises from an allegation that Respondent initiated a physical altercation with [REDACTED] (A.S.),² with whom she had been involved in an intimate relationship. During the course of the dispute, A.S. took Respondent's Department-issued firearm from her handbag. The following is a summary of facts which are not in dispute.

Respondent and A.S. had been involved in an "on-and-off again" romantic relationship for six years preceding the date of this incident. Although they did not reside together, each had keys to the other's homes, and even when they were not dating, they spoke regularly.

On August 1, 2023, Respondent was running errands with her seven-year-old daughter in Queens, not far from A.S.'s home. Even though they had ended their intimate relationship at that time, she went to his residence and saw his vehicle parked outside. Respondent entered his apartment and discovered that A.S. was not there. While inside, Respondent encountered A.S.'s roommate and employee, [REDACTED] (R.H.), and the mother of A.S.'s child, [REDACTED] (T.P.). Respondent went outside and called A.S., who arrived shortly thereafter. Although the parties disagree about who initiated it, there is no dispute that an argument ensued which turned physical. As a result, Respondent and A.S. each sustained facial lacerations. In addition, Respondent had braids torn out of her scalp and bumps on her head. (Dept. Exs. 4A, 4B, *photos of A.S.'s injuries*; Dept. Exs. 5, 5A-C, *photos of Respondent's injuries*)

At some point during the fight, Respondent returned to her car to retrieve her handbag that contained her NYPD-issued cellphone and firearm. A.S. followed her and a tussle over the bag started inside the vehicle, which resulted in A.S. taking Respondent's gun and placing it into

² There are three individuals, one participant and two witnesses, to the events that occurred. None of these individuals appeared before the tribunal. They will be referred to by their initials throughout the decision.

the waistband of his pants. Respondent called 9-1-1 and told the operator, "I just got beat up by [A. S.]." (Dept. Exs. 1, 1A, *Respondent's 9-1-1 call*). When officers from the 105th Precinct arrived, Respondent identified herself as a member of service, and A.S. informed them that he was currently in possession of her firearm.

Both parties were arrested for Assault in the 3rd Degree. In addition, A.S.³ was arrested for Robbery, as well as Criminal Possession of a Weapon, for taking and holding onto Respondent's gun. Respondent was taken to the hospital and examined for a possible concussion; A.S. refused medical attention. (Tr. 33, 42, 98-99, 127-28)

Sergeant Michael Seiger took the stand and testified that he arrived at the scene of the 9-1-1 call and spoke to the officers who initially responded. He recalled interviewing Respondent, who immediately told him that she was a police officer. Sergeant Seiger recounted that Respondent stated that she had gone to A.S.'s apartment because her daughter wanted to have a playdate. According to Sergeant Seiger, Respondent admitted that she and A.S. had an argument which turned physical. He remembered that Respondent accused A.S. of being the "primary aggressor" and punching her in the head several times. In addition, she alleged that he had taken her gun out of her handbag during the fight. Sergeant Seiger recalled that A.S. claimed that Respondent struck him first and that the couple was "wrestling" as he tried to "calm [Respondent] down." Sergeant Seiger described Respondent as "disheveled... [l]ike someone who had just been involved in an altercation." He also saw that she had "a few lacerations" and observed that braids of her hair had been ripped out of her scalp. He characterized A.S. as "slightly distraught" and disarrayed, with cuts on the right side of his face and over his lip, although he declined an offer of medical attention. (Tr. 28-31, 34-35, 40-42)

³ As a result of his arrest A.S. was not interviewed by IAB on the date of this occurrence. He subsequently refused to cooperate with the Department and did not appear before the tribunal to testify.

Sergeant Seiger testified that when he spoke to T.P. at the scene she initially contended that she had not seen the altercation. T.P. later asserted that Respondent and A.S. were already fighting when she came out of the basement apartment. In addition, Sergeant Seiger described walking up and down the street looking for any possible cameras that may have recorded the incident, but was unable to locate any. (Tr. 32-33, 44, 46)

Sergeant Seiger explained that he decided to arrest both parties because of the nature of the allegations, as well as the presence of children, and difficulties controlling the scene. He recalled that Respondent was sent from the 105th Precinct to the hospital because of head pain and elevated blood pressure. (Tr. 42-44)

Sergeant Torres testified that on the date in question he was working in Brooklyn North Investigations and was the lead IAB investigator in this case. As a result of Respondent and A.S. being arrested, Sergeant Torres explained that he could not interview either of them on the evening this occurred. However, he recalled that he was able to interview R.H. first, then T.P., who were both at the apartment at the time of the altercation. Sergeant Torres recounted R.H. telling him that in addition to working for A.S., he also lived in his apartment. R.H. explained that T.P. was the mother of A.S.'s infant, and that she was staying with him while visiting from Canada. (Tr. 52-54, 58, 66-67)

On cross-examination, Sergeant Torres conceded that R.H. and T.P. had not been separated from one another at the 105th Precinct and had possibly spoken to one another prior to their interviews. He recounted that A.S. never cooperated with the investigation and acknowledged that the only 9-1-1 call he discovered during his investigation was made by Respondent. (Tr. 62-66)

Neither R.H. nor T.P. appeared to testify at trial. Instead, the Department introduced into evidence the recordings and accompanying transcripts of their August 1, 2023 interviews with Sergeant Torres. (Dept. Exs. 2, 2A, 3, 3A)

R.H. recounted sitting in A.S.'s basement apartment with T.P. and her child. He explained that A.S. had called T.P. and told her come outside with the baby "right away." T.P. asked R.H. to help her with the child's stroller. R.H. claimed that before they could do so, Respondent came into the apartment asking, "where is [A.S.]" and left upon realizing that he was not there. (Dept. Ex. 2A at 2-3, 6)

R.H. contended that when he came out of the apartment, Respondent was already outside and A.S. was "down the block." He alleged that Respondent walked up to A.S., and "she hit him, and he hit her back." R.H. asserted that the pair "wrestled" and were struggling up against a fence. He described a lull in the fight, after which A.S. followed Respondent to her car. When asked whether Respondent pulled out a firearm, R.H. replied, "Honestly, I never saw that part. [A.S.'s] baby mother saw that part." (Dept. Ex. 2A at 6-7)

T.P. described Respondent coming into A.S.'s apartment and "looking for somebody aggressively" and then leaving. She recalled coming outside and seeing Respondent "pin" A.S. to a fence. When specifically asked by Sergeant Torres, T.P. reported that Respondent hit A.S. first. (Dept. Ex. 3A at 5-6; Tr. 57)

T.P. alleged that she watched Respondent run to her car, reach inside, and pull out a gun. T.P. explained that as she ran away with her child, she heard A.S. yelling at Respondent, "what are you gonna do? Shoot me? Shoot my baby's mother?" When asked by Sergeant Torres for more details, T.P. acknowledged that she had not actually seen the firearm but had "assumed" that the reason that Respondent had gone to the car was to retrieve it. (Dept. Ex. 3A at 8, 10, 13)

Respondent testified that on August 1, 2023, she spoke with A.S. and later texted him that she was bringing her daughter to his apartment for a playdate with his niece. She recalled that A.S. called her at least twice as she was driving to his house, but she did not pick up because she did not want to be distracted from the G.P.S. directions. According to Respondent, when she finally answered, A.S. told her that he and his niece were going to his mother's house. Respondent remembered asking him to send her that address so that she could bring her daughter there. (Tr. 84-85)

Respondent alleged that, since she was close to A.S.'s apartment, she drove there to use the restroom and to wait for him to text her his mother's address. When she got to A.S.'s home, Respondent recalled seeing his vehicle parked in front. She explained that honesty was a constant problem in her relationship with A.S. She admitted to being "annoyed" and "angry" because she believed A.S. had lied to her about being home. (Tr. 85-88, 106-08)

Respondent stated that since the front door of the basement apartment was open, she walked in. She recalled seeing A.S.'s employee, R.H., and a woman whom she had never met, sitting in the living room. She testified that she later learned the woman was T.P., the mother of A.S.'s infant child. Respondent walked past them and looked in A.S.'s bedroom, which was empty. As Respondent was leaving, she saw A.S.'s niece, who came outside and started playing with Respondent's daughter in the yard. Respondent explained that she walked a few houses down, in order to call A.S. out of earshot of the children. She described arguing with A.S. over the phone and then seeing him driving quickly towards her on the wrong side of the street. Respondent claimed that A.S. pulled the car partway onto the sidewalk and got out. She conceded that she stated, "I would be wrong if I told you I felt like smacking you," and that A.S. retorted, "Trust me Lenita, you could never smack me." Respondent alleged that A.S. grabbed

the upper part of her right arm and started pulling her towards her car while telling her, "You must leave." Respondent recounted that A.S. was in a "rage" and recalled him punching her "over and over and over" about the face and head. Respondent explained that at some point during this tussle, she realized that she had dropped her cellphone and bent to look for it. She alleged that A.S. then grabbed her hair, controlling her movements by pulling on her braids, ripping some of them from her scalp. Respondent described him repeating, "I told you to leave." Respondent speculated that A.S. eventually "got tired" and let her go. (Tr. 86-91)

According to Respondent, she announced that she was going to call the police and began to walk back towards the apartment. Respondent claims she rang A.S.'s landlord's doorbell for help, and when no one answered, went to her car to retrieve her Department cellphone. Respondent asserted that A.S. followed her and attacked her from behind inside of the car. She described that in the course of fighting for control of her handbag, A.S. reached into it and took her gun. Respondent claims that when she demanded that A.S. return the firearm, he refused and tucked it into the front of his waistband. When confronted during cross-examination, Respondent claimed that she was simply trying to retrieve her cellphone from her bag and that she had forgotten the firearm was there. (Tr. 91-95, 118)

Respondent recalled being sent by EMS to the hospital because of the number of times she was hit in the head and her elevated blood pressure. She described receiving either a CAT scan or MRI, to check for a possible concussion. In addition, she related having bumps, scratches and bruising to her face and head. According to Respondent, she also had bald patches from her hair being ripped out of her head and has some permanent hair loss in those locations. Respondent denied seeing R.H. and T.P. outside during the altercation and maintained that neither of them attempted to intervene. (Tr. 98-100, 127-28)

She admitted that she defended herself by hitting A.S., which resulted in scratches on his face. However, Respondent repeatedly denied initiating the fight. When asked about the results of her arrest for Assault in the Third Degree, Respondent replied that the charge was resolved with an Adjournment in Contemplation of Dismissal (ACD). In addition, she acknowledged that officers are not permitted to carry their firearms in handbags. (Tr. 89, 92, 100, 112, 128)

Specification 1: Physical Altercation

Respondent is charged with engaging in a physical altercation with A.S. The parties agree that Respondent and A.S. had a fight which resulted in injuries to each of them. The question for the tribunal is whether the Department has proven, by a preponderance of the credible evidence, that Respondent was the initial aggressor, hitting A.S. in the face, causing him to retaliate. I find that they have not.

Administrative Guide 304-06 prohibits police officers from engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department. This covers a range of behaviors, including committing acts which constitute domestic assault.

Sergeant Seiger and Sergeant Torres each took the stand and testified in a straightforward manner. Neither sergeant had any prior relationship or dealings with Respondent or A.S. or had any interest in the outcome of these proceedings.

Sergeant Seiger explained that when he spoke to Respondent and A.S. at the scene, each accused the other of starting the physical fight. He observed that Respondent had several braids ripped from her head, as well as scratches and welts on her face and that A.S. had some lacerations on his face. Sergeant Seiger recounted speaking to T.P., who denied seeing how the altercation between the parties started. In addition, Sergeant Seiger's canvas for video footage of the event was unsuccessful.

Sergeant Torres's testimony consisted mostly of summarizing the interviews that he conducted with R.H. and T.P., the recordings and transcripts of which are in evidence. He did, however, recount that he talked to R.H. first and confirmed that T.P. and R.H. had the opportunity to speak with each other before he met with them.

With regard to the interviews of R.H. and T.P., it is well-settled that hearsay evidence is admissible in administrative proceedings and may indeed form the sole basis for a finding of fact. However, the hearsay must be evaluated carefully to determine whether it is sufficiently reliable. In the absence of live testimony from R.H. and T.P., I carefully considered their prior unsworn statements, in conjunction with the other evidence presented at trial. Both of them had relationships with A.S. which would make it difficult for them to be considered neutral observers, and neither was a reliable storyteller.

R.H.'s interview was somewhat disjointed, and it was unclear when he left the apartment and if he witnessed which party struck the other first. Similarly, on the scene, T.P. told Sergeant Seiger that she had not seen the fight. However, she contradicted herself when asked by Sergeant Torres who was the initial aggressor, claiming that she saw Respondent slap A.S. first. In addition, although they both claimed to see Respondent pinning A.S. to a fence, neither of them called 9-1-1. Without the benefit of in-person questioning and cross-examination about the inconsistencies contained in their hearsay statements and potential biases, it is not possible to credit their versions of events.

In contrast, Respondent testified in a detailed and consistent manner. She admitted being angry at A.S. for lying to her and telling him that she wanted to "smack" him. Throughout all of the proceedings, she has maintained that she did not initiate the fight by punching or hitting A.S. first. Respondent described defending herself as A.S. punched and dragged her first by the arm

and then by her hair. This narrative is consistent with the 9-1-1 call she made, and with the photographs of the injuries both she and A.S. sustained. In addition, A.S.'s taking of Respondent's gun further corroborates her claim that she was in danger from him. Although there is ample evidence in the record that a physical altercation took place, there is insufficient evidence to prove who was the initial aggressor and that Respondent did not act in self-defense. Accordingly, I find Respondent Not Guilty of Specification 1.

Specification 2: Failure to Safeguard Firearm

Respondent is charged with failing to safeguard her firearm, resulting in A.S. taking it from her handbag during the physical altercation.

Administrative Guide 305-07 prohibits officers from carrying firearms, "in briefcases, handbags, fanny packs, hip packs, tote bags, knapsacks, paper bags or similar devices."

It is undisputed that on the date in question, Respondent had her Department-issued firearm in her handbag, in her unlocked car, and that during their fight, A.S. was able to take it from her. Indeed, at trial, Respondent admitted that she was aware of the prohibition against carrying her gun in this manner. As this is precisely the type of situation which the rule is meant to protect against, her testimony that she "forgot" the weapon was in her purse is not persuasive on the issue of guilt. Accordingly, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from

her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent was appointed to the Department on July 1, 2003. She has one prior disciplinary matter from 2014 in which she forfeited ten vacation days for driving an uninsured vehicle. In the instant proceeding, Respondent has been found guilty of failing to safeguard her firearm, resulting in it being taken by another person during a dispute. Because of the potential for serious consequences, there is no mitigated penalty contemplated by the Matrix and the presumptive penalty for this misconduct is the forfeiture of twenty (20) vacation days. (Matrix at p. 41)

Counsel for Respondent argued that Respondent should not be held responsible for losing control of the gun because it happened while she was trying to summon help in the midst of being subjected to an assault. The tribunal does not fault Respondent for trying to get to her phone in order to call for aid. Fortunately, A.S. put the gun into his waistband and informed the first officers on the scene that he possessed it, allowing for its safe recovery. However, Respondent's careless handling of her Department-issued firearm put everyone present in danger and violated the Department's specific gun safety rules.

Following her arrest, Respondent was suspended from duty without pay from August 1 to August 30, 2023. I recommend the presumptive penalty of the forfeiture of twenty (20) suspension days, which she has already served, and that the additional ten (10) suspension days previously served be restored to her.

APPROVED

JAN 09 2026
Jessica S. Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Anne E. Stone
Anne E. Stone
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER LENITA HARRISON
TAX REGISTRY NO. 932776
DISCIPLINARY CASE NO. C-031586

Respondent was appointed to the Department on July 1, 2003. On her three most recent annual performance evaluations, she received ratings of “Exceptional” for 2022, 2023 and 2024.

In 2014, Respondent forfeited ten (10) vacation days after pleading guilty to driving an uninsured and unregistered vehicle and parking it on a public street in the confines of her assigned precinct.

In connection with the instant matter, Respondent was suspended without pay from August 1, 2023, through August 30, 2023. Additionally, she was placed on Level 2 Discipline Monitoring on February 1, 2024; that monitoring remains ongoing. She had previously been on Level 1 Discipline Monitoring from July 21, 2022 through April 5, 2023.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials